

FIBREHOOD ACCEPTABLE FAIR USE, ACCESS & NETWORK MANAGEMENT POLICY

ANNEXURE 2

1. PURPOSE

1.1

This Acceptable Fair Use, Access and Network Management Policy ("Policy") defines the acceptable use of services provided by Fibrehood (Private) Limited ("FIBREHOOD").

1.2

The purpose of this Policy is to enable FIBREHOOD to:

1.2.1

Maintain the integrity, security, stability and quality of its network and services;

1.2.2

Protect its Customers, infrastructure, systems and personnel from abuse, misuse and unlawful activities;

1.2.3

Comply with applicable laws, regulations, licence conditions and directives issued by the Postal and Telecommunications Regulatory Authority of Zimbabwe (POTRAZ) and other competent authorities;

1.2.4

Ensure fair and equitable access to network resources for all Customers;

1.2.5

Co-exist responsibly with the global Internet community and interconnected network operators.

2. THE NETWORK

2.1

The Customer acknowledges that FIBREHOOD does not exercise control over the content, information, data, applications, websites, electronic communications or other materials transmitted over the Internet and accordingly accepts no responsibility for such content.

2.2

The Customer agrees to comply with the acceptable use policies, operating requirements and rules of any third-party networks, systems or services accessed through the FIBREHOOD network.

2.3

The Customer shall not use the FIBREHOOD network to obtain, distribute, transmit, facilitate or store any unlawful material including but not limited to:

2.3.1

Copyrighted or intellectual property protected material without lawful authority;

2.3.2

Child sexual abuse or exploitation material;

2.3.3

Unlawful hate speech, incitement to violence or discriminatory content;

2.3.4

Material supporting, promoting or facilitating terrorism or terrorist financing;

2.3.5

Fraudulent, deceptive or misleading content;

2.3.6

Phishing, malware, ransomware, spyware or other malicious software.

3. FAIR USAGE AND NETWORK MANAGEMENT

3.1

FIBREHOOD offers services on a shared network environment and reserves the right to implement reasonable traffic management measures to preserve service quality for all Customers.

3.2

In order to ensure fair and equitable use of network resources, FIBREHOOD reserves the right to investigate and manage any usage pattern that materially exceeds normal customer usage or adversely affects network performance experienced by other Customers.

3.3

FIBREHOOD may from time to time publish Fair Usage thresholds, network management practices and traffic management policies on its website or through customer communications.

3.4

FIBREHOOD reserves the right to:

3.4.1

Limit throughput;

3.4.2

Shape, prioritise, de-prioritise or rate-limit certain classes of traffic;

3.4.3

Restrict or manage access through specific ports, protocols or applications;

3.4.4

Implement congestion management measures during periods of network congestion;

3.4.5

Prevent or limit activities that threaten network integrity, security or service quality.

3.5

FIBREHOOD reserves the right to investigate abnormal traffic patterns including but not limited to:

- Automated traffic generation;
- Bulk downloading activities;
- Excessive peer-to-peer traffic;
- Cryptocurrency mining;
- Commercial hosting activities;
- Public hotspot operations;
- Any activity likely to negatively affect network performance.

4. RESIDENTIAL AND BUSINESS SERVICES

4.1

Residential services are intended solely for personal, private and domestic use.

4.2

Unless expressly authorised by FIBREHOOD in writing, Customers may not use residential services for:

4.2.1

Business operations;

4.2.2

Public Wi-Fi services;

4.2.3

Internet cafés;

4.2.4

Schools, lodges or commercial establishments;

4.2.5

Multi-tenant distribution arrangements;

4.2.6

The provision of connectivity services to third parties.

4.3

Where FIBREHOOD determines that a residential service is being used for business or commercial purposes, FIBREHOOD may require migration to an appropriate business service package.

5. RESELLING OF SERVICES

5.1

Customers shall not resell, redistribute, share, repackage or commercially exploit any FIBREHOOD service without a valid wholesale, reseller or partner agreement executed with FIBREHOOD.

5.2

Unauthorised resale shall constitute a material breach of this Policy and may result in immediate suspension or termination of service.

6. PROHIBITED ACTIVITIES

6.1

The Customer shall not:

6.1.1

Circumvent user authentication or security controls;

6.1.2

Attempt unauthorised access to any system, network, device or account;

6.1.3

Conduct vulnerability scans or penetration testing without written authorisation;

6.1.4

Interfere with the services of any user, network or system;

6.1.5

Launch denial-of-service attacks or distributed denial-of-service attacks;

6.1.6

Forge network packets, headers or electronic communications;

6.1.7

Transmit viruses, malware or malicious code;

6.1.8

Use the network for phishing, fraud or identity theft;

6.1.9

Engage in unlawful interception or monitoring of communications;

6.1.10

Connect equipment likely to impair, damage or interfere with the operation of the FIBREHOOD network.

7. NETWORK SECURITY

7.1

The Customer shall take reasonable measures to secure devices connected to the FIBREHOOD network.

7.2

FIBREHOOD may investigate actual or suspected violations of network security.

7.3

FIBREHOOD may cooperate with law enforcement agencies, regulatory authorities, network operators and other stakeholders in investigating security incidents.

8. CUSTOMER EQUIPMENT

8.1

Customers shall ensure that all equipment connected to the FIBREHOOD network complies with applicable technical standards and does not adversely affect network operations.

8.2

FIBREHOOD reserves the right to disconnect any equipment that poses a threat to network security, integrity or service quality.

9. SERVICE PERFORMANCE

9.1

Unless otherwise expressly agreed in writing, Internet services are provided on a best-effort basis.

9.2

Advertised speeds represent maximum achievable service speeds under optimal conditions and actual performance may vary due to:

9.2.1

Network congestion;

9.2.2

Customer equipment;

9.2.3

Wi-Fi coverage and interference;

9.2.4

Destination server performance;

9.2.5

Third-party network performance;

9.2.6

Other factors beyond the reasonable control of FIBREHOOD.

9.3

FIBREHOOD's responsibility extends to the delivery of service at the installed network termination point. Performance within the Customer's premises may be affected by internal wiring, Wi-Fi coverage, customer equipment and environmental factors.

10. DATA PROTECTION AND PRIVACY

10.1

FIBREHOOD shall process Customer information in accordance with applicable laws including the Cyber and Data Protection Act [Chapter 12:07].

10.2

Customer information may be collected, stored, processed and disclosed where required:

10.2.1

For the provision of services;

10.2.2

To comply with legal or regulatory obligations;

10.2.3

To protect the integrity and security of the network.

11. LAWFUL INTERCEPTION AND REGULATORY COMPLIANCE

11.1

The Customer acknowledges that FIBREHOOD is subject to applicable telecommunications, cyber security, data protection and lawful interception legislation.

11.2

FIBREHOOD shall comply with all lawful directives, requests, warrants and orders issued by competent courts, law enforcement agencies, POTRAZ and other authorised regulatory bodies.

11.3

The Customer acknowledges that FIBREHOOD may be required by law to disclose information, suspend services or otherwise comply with lawful requests issued by competent authorities.

11.4

Customers shall comply with all applicable laws, regulations, licence conditions and directives issued by POTRAZ from time to time.

12. ENFORCEMENT

12.1

Where FIBREHOOD reasonably believes that a Customer has violated this Policy, FIBREHOOD may take any action it considers reasonably necessary, including:

12.1.1

Issuing warnings;

12.1.2

Restricting bandwidth;

12.1.3

Suspending specific services;

12.1.4

Suspending the Customer account;

12.1.5

Terminating service;

12.1.6

Blocking access to specific applications, protocols or destinations;

12.1.7

Recovering reasonable administrative, technical, legal and operational costs incurred by FIBREHOOD in responding to the incident;

12.1.8

Providing relevant information to law enforcement agencies, regulators or other network operators where permitted or required by law.

13. NON-PAYMENT

13.1

FIBREHOOD reserves the right to suspend, restrict or terminate services where payment obligations remain outstanding or where the Customer is otherwise in breach of any agreement with FIBREHOOD.

14. INDEMNITY

14.1

The Customer indemnifies and holds harmless FIBREHOOD, its directors, officers, employees, contractors and agents against any claim, loss, damage, liability, penalty, cost or expense arising from:

14.1.1

The Customer's use or misuse of the services;

14.1.2

Any breach of this Policy;

14.1.3

Any unlawful activity conducted using the Customer's account, equipment or connection.

15. GENERAL

15.1

This Policy forms part of FIBREHOOD's Standard Terms and Conditions and all service agreements entered into between FIBREHOOD and its Customers.

15.2

FIBREHOOD may amend this Policy from time to time in order to comply with changes in law, regulatory requirements, network operations or business practices.

15.3

The latest version of this Policy shall be published on the FIBREHOOD website and shall become effective upon publication.

15.4

Any suspected violation of this Policy may be reported to:

Email: legal@fibrehood.co.zw or admin@fibrehood.co.zw